

IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-32690-2026 (O&M)
DECIDED ON: 08.06.2026

JAGBIR SINGH

.....PETITIONER(S)

VERSUS

STATE OF HARYANA

...RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Vikram Singh, Advocate for the petitioner(s)

Ms. Mayuri Lakhanpal Kalia, DAG, Haryana.

Mr. CP Tiwana, Advocate for the complainant.

SANDEEP MOUDGIL, J (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No. 0193 dated 15.05.2026 under Section 108 of the BNS, 2023 registered at Police Station Shivaji Colony, District Rohtak.

2 Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that there is no abetment at the end of the petitioner as the essential ingredients of Section 108 of BNS are not made out. He further contends that there is no suicide note left behind by the deceased person and the present FIR has been solely registered on the basis of the

complaint given by son of the deceased in an attempt to escape civil liability, therefore, prays for grant of anticipatory bail to the petitioner.

Notice of motion.

On behalf of the State/complainant

On the asking of Court, Ms. Mayuri Lakhanpal Kalia, DAG, Haryana. accepts notice on behalf of respondent/State.

She along with learned counsel for the complainant oppose the prayer for grant of anticipatory bail stating that the petitioner has been specifically named in the FIR and his custodial interrogation is necessary to unearth the truth.

3. **Analysis**

Be that as it may, having given due consideration to the submissions advanced, particularly to the fact that there is no suicide note left behind by the deceased person and the present FIR has been solely registered on the basis of the complaint given by son of the deceased in an attempt to escape civil liability, thus custodial interrogation of the petitioner is not required at this stage.

In the light of above, this Court is of the considered view that there is no valid or cogent reason to deny the bail to the present petitioner, wherein he has *bona fide* intentions and is ready and willing to join the investigation and cooperate for furtherance of the same so that the final report can be submitted by the Investigating Agency in time.

4. **Relief:-**

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to the satisfaction of Arresting Officer/Investigating Officer. The petitioner shall also

abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

08.06.2026

nainarajput/anuradha

(SANDEEP MOUDGIL)
JUDGE

Whether speaking/reasoned
Whether reportable

:Yes/No
:Yes/No